24STCP01040 24STCP01040

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-09-02

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Case Number: 24STCP01040 Hearing Date: September 2, 2026 Dept: 729

Superior
Court of California

County
of Los Angeles

DEPARTMENT 729

TENTATIVE
RULING

VINCE WILLIAMS,

vs.

EAGLE ENVIRONMENTAL &
CONSTRUCTION, et al.

Case No.:
24STCP01040

Hearing Date: August 20, 2026

Judgment
Creditor Collins Judgment Recovery Services' unopposed motion to amend
the judgment to include Eagle Environmental Construction & Development, A
California Corporation, as a Judgment Debtor is granted. Judgment Creditor is to submit a proposed
amended judgment within ten days.

Judgment Creditor/Assignee of Record Collins Judgment Recovery Services (“Collins”) (“Judgment Creditor”) moves unopposed for this Court to amend the judgment in this matter entered on April 3, 2024, against Respondents Eagle Environmental & Construction, A California Corporation and Ronald John Batiste (collectively “Respondents”) to include Eagle Environmental Construction & Development, A California Corporation (“EEC&D”) as a judgment debtor on the grounds (i) EEC&D is the alter ego of the original judgment debtor; (ii) a unity of ownership and control exists between the debtor and EEC&D; (iii) substantial post-judgment transfers were made into EEC&D while debtor accounts were depleted; and (iv) an inequitable result will occur if the judgment is not amended. (Notice Motion, pgs. 1-2; C.C.P. §187.)

Background

On January 9, 2024, the Labor Commissioner instructed the Clerk of this Court to enter judgment immediately against Respondents pursuant to the Labor Commissioner’s Final Order. (See 3/25/25 Request for Entry of Judgment.)

On April 3, 2024, the Clerk entered a Labor Judgment in favor of Petitioner Vince Williams (“Williams) (“Petitioner”) against Respondents in the amount of $545,747.55 (“Award”).

The parties in this case agreed to a settlement on the issues and waived the right to an adjudicative hearing on said issues. (See 3/25/25 Request for Entry of Judgment, PDF pg. 3.)

On August 12, 2025, Petitioner assigned the judgment awarded on April 3, 2024, to Judgment Creditor Collins Judgment Recovery Services. (See 8/13/25 Assignment of Judgment.)

Judgment Creditor filed the instant motion on April 8, 2026. As of the date of this hearing no opposition has been filed.

Motion to Amend Judgment

Legal Standard

“Section 187 grants every court the power and authority to carry its jurisdiction into effect. [Citation.] This includes the authority to amend a judgment to add an alter ego of an original judgment debtor, and thereby make the additional judgment debtor liable on the judgment. [Citation.]” (Highland Springs Conference & Training Center v. City of Banning (2016) 244 Cal.App.4th 267, 280, internal citations omitted.)

“Amending a judgment to add an alter ego of an original judgment debtor ‘is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant.’ [Citation.]” (Id., internal citations omitted.)

“Section 187 contemplates amending a judgment by noticed motion. [Citations.] The court is not required to hold an evidentiary hearing on a motion to amend a judgment, but may rule on the motion based solely on declarations and other written evidence. [Citation.]” (Id., internal citations omitted.)

“To prevail on the motion, the judgment creditor must show, by a preponderance of the evidence, that: ‘(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.’ [Citation.] The decision to grant or deny the motion lies within the sound discretion of the trial court [citation] and will not be disturbed on appeal if there is a legal basis for the decision and substantial evidence supports it. [Citation.]” (Id., internal citations omitted.)

“In determining whether there is a sufficient unity of interest and ownership, the court considers many factors, including ‘the commingling of funds and assets of the two entities, identical equitable ownership in the two entities, use of the same offices and employees, disregard of corporate formalities, identical directors and officers, and use of one as a mere shell or conduit for the affairs of the other.’” [Citation.] Inadequate capitalization of the original judgment debtor is another factor. [Citation.] No single factor governs; courts must consider all of the circumstances of the case in determining whether it would be equitable to impose alter ego liability. [Citation.]” (Id. at pgs. 280-281, internal citations omitted.)

Discussion

Judgment

Creditor’s motion to amend the judgment to include EEC&D as a Judgment Debtor is granted. Here, Judgment Creditor demonstrates, by a preponderance of the evidence, that EEC&D is an alter ego of Judgment Debtors based on post-judgment investigations into bank records and financial documents:

The evidence shows that Ronald John Batiste transferred substantial funds from his personal accounts to Eagle Environmental Construction, later renamed Eagle Environmental Construction and Development (“EEC&D”), during a period in which he was insolvent or unable to satisfy the judgment.

Specifically, between July 2025 and September 2025, Ronald John Batiste transferred approximately $94,200.00 to EEC&D, including but not limited to the following transactions:

a. On July 14, 2025, $13,000.00 was transferred from Batiste’s personal account to EEC&D (Exhibit A);

b. On August 18, 2025, $10,000.00 was transferred (Exhibit B);

These transfers demonstrate a pattern of diverting personal funds into EEC&D while avoiding satisfaction of the judgment.

In addition, bank and business records show that the account and/or entity name associated with Eagle Environmental Construction was formally changed in or about October 2025 to Eagle Environmental Construction and Development (“EEC&D”), as reflected in Exhibit D.

(Decl. of Collins pg. 2, Exhs. A, B, D.)

The
Court takes judicial notice of the Secretary of State Business Entity Search documents for EEC&D, indicating that it was formed as an entity on November 23, 2021, as a California Corporation, wholly owned by Ronald J Batiste. (See also Decl. of Collins, Exh. E.)

Here, the bank records demonstrate commingling of funds and a lack of separation between Batiste and EEC&D, including use of personal accounts to fund corporate operations, transfers without consideration, and concentration of assets in EEC&D while liabilities remained with Batiste.

“Amendment of a judgment to add an alter ego is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant . . . . Such a procedure is an appropriate and complete method by which to bind new . . . defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit.” (Greenspan v. LADT, LLC (2010) 191 Cal.App.4th 486, 508, citations omitted.) “The greatest liberality is to be encouraged in the allowance of such amendments in order to see that justice is done.” (Id.)

Based on the evidence before the Court, EEC&D functions as an alter ego of Ronald John Batiste and an inequitable result will occur if the judgment is not amended to include EEC&D as a Judgment Debtor.

Accordingly, Judgment Creditor’s motion is granted.

Conclusion

Judgment Creditor’s unopposed motion to amend the judgment to include EEC&D as a Judgment Debtor is granted. Judgment Creditor is to submit a proposed amended judgment within ten days.

Moving Party to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court